

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 14-06

**SANTA FE DISCOUNT CRUISE PARKING, INC. d/b/a EZ
CRUISE PARKING; LIGHTHOUSE PARKING, INC.; and
SYLVIA ROBLEDO d/b/a 81st DOLPHIN PARKING**

Complainants

v.

**THE BOARD OF TRUSTEES OF THE GALVESTON
WHARVES and THE GALVESTON PORT FACILITIES
CORPORATION**

Respondents

JOINT STATUS REPORT

Complainant Sylvia Robledo d/b/a 81st Dolphin Parking (“Complainant”) and Respondent The Board of Trustees of the Galveston Wharves (“Respondent”) have conferred and hereby submit this joint status report pursuant to Order of the Honorable Erin M. Wirth, Chief Administrative Law Judge, entered and served on August 8, 2022.

1. Settlement Discussion

The parties have discussed potential settlement of this matter in effort to avoid the time and expense of litigating the remaining issues. Those discussions have yielded no results, thus future settlement appears to be problematic.

2. Proposed Schedule for Briefing

Pursuant to the limitations set forth in the August 8, 2022 Order of the Honorable Erin M. Wirth, Chief Administrative Law Judge, the remaining parties have reached an agreement to the following proposed schedule for briefing the two remaining issues:¹

- (a) Complainant will file its brief on or before November 30, 2022;
- (b) Respondent will file its brief on or before January 4, 2023; and
- (c) Complainant will file its reply brief on or before January 30, 2023.

Respondent contends that the prior Findings of Fact and Conclusions of Law regarding the two remaining issues were not designed to reflect the facts and findings needing to be specifically addressed on remand. It is Respondent's position that the Commission left those two issues, and all factual matters in evidence relevant to those two issues to be determined on this remand. For example, past findings regarding the end dates limousines were not charged as noted in the Commission's Opinion on Remand, remain to be determined as well as facts predicated the relevant measure of damages. Due to this, Respondent believes the parties should file Proposed Supplemental Findings of Fact and Conclusions of Law based on the existing record with regard to the two remaining issues.

Complainant disagrees with this position, and asserts that Proposed Findings of Fact and Conclusions of Law have already been filed by the respective parties, and no additional "Proposed Supplemental Findings of Fact and Conclusions of Law" are necessary or otherwise warranted. The Commission's remand was limited to "argument on the correct end-date for calculating reparations on the selective enforcement claim" and to "address the method for calculating reparations on remand." August 8, 2022 Order at 2. Specifically, the relevant Order identifies that "[o]nly briefing on the two issues remanded after reconsideration will be

¹ Briefing will be limited to "argument on the correct end-date for calculating reparations on the selective enforcement claim" and to "address the method for calculating reparations on remand." August 8, 2022 Order at 2.

permitted.” *Id.* at 3. Accordingly, Complainant believes that only briefing with regard to the two remaining issues on remand are needed to resolve this matter.

Dated: August 23, 2022

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*By permission

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**THE BOARD OF TRUSTEES OF
THE GALVESTON WHARVES**

CERTIFICATE OF SERVICE

I hereby certify that I electronically filed this document on this **23rd day of August, 2022**, and that a true and correct copy of the foregoing was served on all counsel of record **via** certified mail – return receipt requested and email, as indicated below:

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